

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, October 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29227 against Lieutenant Florin Kuka, Tax Registry No. 936047. The case was conferenced on October 17, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of Department Imposed Training.

Andre Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29227
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, KUKA	FIRST FLORIN	M.I.	COMMAND 121 PCT
SHIELD NO. 00000	TAX REGISTRY NO. 936047	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Florin Kuka, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Lt. Kuka threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.

DC Borhio
FIRST DEPUTY COMMISSIONER

11/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Thomas De Santis
POLICE COMMISSIONER

11/13/24
DATE

THIRD ENDORSEMENT

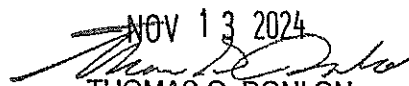
First Deputy Commissioner to Police Commissioner, November 7, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29227 (CCRB Case #202205991) against Lieutenant Florin Kuka, Tax #936047, with the recommendation that the Charges and Specifications against Lieutenant Kuka be dismissed and that Lieutenant Kuka receive Training. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

NOV 13 2024

THOMAS G. DONLON
POLICE COMMISSIONER